

23SMCV01268 23SMCV01268

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-09-01

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SM%20%2CP%2C09%2F01%2F2026

Source SHA-256: 8da645c56327af30f5b418fe4125d8739101c7b6d74f80987fecbba5bafa36c

Case Number: 23SMCV01268 Hearing Date: September 1, 2026 Dept: P

Tentative Ruling

Gregory

Hannley v. Howard Mann, Case No. 23SMCV01268

Plaintiffs'

Motion for a Protective Order for Third Party Witness Namsis Loch

Hearing

Date: September 1, 2026

Background

On

March 23, 2023, Plaintiffs Gregory Hannley, Rick Darnell, Alex Draghici, Vivera Pharmaceuticals, Inc., Farah Barghi, Mali Saatchi, and Paul Edalat sued Defendants Howard Mann; Bruce E. Cahill; Robert C. Blaine; Federico Cabo; Blaine Laboratories, Inc.; Alternate Health Corp.; Alternate Health USA Inc.; Michael Murphy; Satish Dass; and Does 1-20 for (1) elder abuse; (2) defamation; (3) slander; (4) libel; (5) unfair competition; (6) intentional interference with prospective economic advantage; (7) intentional infliction of emotional distress; (8) civil extortion; (9) intentional infliction of emotional distress; (10) civil extortion.

After

three amendments, the operative third amended complaint claims same ten causes of action against the same defendants, except Frederic Cabo. On March 26, 2024, The Court dismissed Cabo from this case and entered judgment in his favor. On

November 25, 2024, Plaintiffs dismissed Defendant Michael Murphy.

On

January 27, 2026, the Court held another IDC regarding Plaintiffs' allegedly deficient production of documents, and alleged spoliation. Cahill asserted that Plaintiffs failed to respond to his form and special interrogatories. At the IDC, Plaintiff accused the Blaine Defendants of witness tampering. The Court ordered Plaintiff to produce all responsive documents and respond to Cahill's Form and Special interrogatories. The Court set an evidentiary hearing regarding Plaintiffs' allegations of witness tampering for May 22, 2026. After several continuances, evidentiary hearing was held on August 7, 2026. The Court found that the Plaintiffs' allegations of witness tampering were not credible.

On

June 2, 2026, the Court appointed a discovery referee for all purposes due to Plaintiffs' misconduct during depositions.

On

May 18, 2026, Plaintiffs moved for a protective order preventing third party Namsis Loch's deposition. On July 6, 2026, the Blaine Defendants filed opposition. On July 13, 2026, Plaintiffs replied.

Arguments

Prior

to the August 7, 2026, evidentiary hearing, the parties represented that the Court's decision on this protective order depended on the outcome of the hearing, so the motion was continued alongside the hearing. However, after the hearing the Blaine Defendants argued that the motion was not moot. The Court set this motion for hearing on September 1, 2026.

The basis

for Plaintiffs' protective order are anonymous threatening texts that Namsis Loch received on October 2, 2023, before an arbitration in a different case. (Motion for Protective Order, pp. 0-2.) Plaintiffs argue that Blaine's threats are good cause to prevent Namsis Loch's deposition.

In

opposition, the Blaine Defendants argue that Namsis Loch is Mr. Edalat's long-time assistant who handled Viviera Pharmaceuticals' financial and

operational documents. Therefore, the Blaine Defendants argue that her deposition is likely to produce admissible material and that she is in possession of relevant evidence. (Opposition, pp. 8-9.) The Blaine defendants argue that the plaintiffs do not establish good cause to block Namsis Loch's deposition and request sanctions of \$3,900 for opposing a frivolous motion. (Id. at 10-14.)

In reply,

Plaintiffs argue that there is sufficient evidence of harassment to show good cause for a protective order. (Reply, p. 2.) Plaintiffs also argue that they have withdrawn Namsis Loch as a trial witness and that Blaine had an opportunity to cross-examine Loch in a deposition in the prior case. (Id. at p. 3.) Plaintiffs then argue that in Blaine's deposition he admitted to settling with another woman who claimed that Blaine sexually harassed her in a similar manner to the way in which Namsis Loch claims he treated her. (Id. at p. 4.)

Governing

Law- Motion for a Protective Order

Management

of discovery generally lies within the sound discretion of the trial court." (Lickter v. Lickter (2010) 189 Cal.App.4th 712, 740.) "Judges [have] broad discretion in controlling the course of discovery and in making the various decisions necessitated by discovery proceedings." (Obregon v. Superior Court (1998) 67 Cal.App.4th 424, 431.) Thus, the discovery statutes "vest a wide discretion in the trial court in granting or denying discovery." (Hartbrodt v. Burke (1996) 42 Cal.App.4th 168, 175.)

The

Court "shall limit the scope of discovery if it determines that the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. The court may make this determination pursuant to a motion for protective order by a party or other affected person. This motion shall be accompanied by a meet and confer declaration under Section 2016.040." (Code Civ. Proc. § 2017.020.)

Sanctions

against an unsuccessful moving or opposing party are mandatory unless the party acted with substantial justification or there are other circumstances that make

the imposition of the sanction unjust. (Code Civ. Proc. § 2017.020(b); Code Civ. Proc. § 2031.060(h-i).)

Discussion

There

is no reason Namsis Loch should not be deposed. Plaintiffs do not dispute that Namsis Loch has relevant information or documents, they contend there is good cause for a protective order because Blaine harassed her in 2023 and because she is not a trial witness in this case. First, Blaine himself has stated that he will not be present at Namsis Loch's deposition. (Blaine Decl., ¶ 7.) Second, misbehavior at depositions is exactly why the Court appointed a discovery referee in this case. The referee will be present at Ms. Loch's deposition and will intervene if there is any concerning behavior. Because the Discovery Referee will mitigate any threat the Blaine Defendants pose, there is no basis for maintaining this motion after the appointment of the discovery referee.

Sanctions

against the unsuccessful party on a motion for a protective order are mandatory. The Blaine Defendants request \$3,900 in sanctions for six hours of their attorneys' work on this motion at \$650 per hour. (Yost Decl. ISO Opposition, ¶¶ 55-56.) \$650 per hour is a reasonable rate for an attorney of Mr. Yost's experience in the Los Angeles Area. (See Yost Decl., ¶ 56.) Six hours of work on this motion, which has been discussed at several hearings and continued for two months, is appropriate.

Conclusion

Plaintiffs'

Motion for a Protective Order is DENIED.

The

Blaine Defendants are awarded \$3,900 in sanctions, payable within ten (10) days.